

Court No. - 3

Case :- WRIT - C No. - 19479 of 2022

Petitioner :- Shyama Devi

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Om Shiv

Counsel for Respondent :- CSC, Madan Mohan Chaurasisa

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard Sri Om Shiv, learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Madan Mohan Chaurasisa, learned counsel for the respondent No.4.

This writ petition has been filed praying for the following relief:

"(i) Issue a writ, order or direction in the nature of certiorari quashing the citation dated 05.05.2022 including the entire recovery proceeding initiated by the respondent No. 3 against the petitioner for recovery of Rs. 3,09,300/-+ other (Annexure No.1 to the writ petition).

(ii) Issue a writ, order or direction in the nature of mandamus restraining the respondents from making any recovery in pursuant to recovery citation issued by the respondent No. 3"

Sri Madan Mohan Chaurasisa, learned counsel for the respondent No.4/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under **Para 6.8 of U.P. Electricity Supply Code, 2005** before the respondent No.4, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.4 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 15.7.2022

NLY